



United States
Attorney's Office
Western District of Texas



Hospital, Medical Imaging Services Company, and Others to Pay \$3.1 Million to Resolve False Claims Act Allegations

Wednesday, April 2, 2025

For Immediate Release

U.S. Attorney's Office, Western District of Texas

EL PASO, Texas – The United States has reached agreements with several individuals and entities to resolve allegations of improper billing for medical imaging services at a surgical hospital in El Paso. Desert Imaging Services, L.P., In Tandem Solutions Group, LLC, and Leroy Candelaria agreed to pay the United States \$693,913; Donald Burris and Vox Intus, LLC agreed to forfeit \$325,000; and East El Paso Physician's Medical Center, LLC, doing business as Foundation Surgical Hospital of El Paso, agreed to entry of a consent judgment in the amount of \$2,081,739.

The United States alleged that the settling parties engaged in an illegal kickback and pass-through billing scheme in which Desert Imaging used Foundation Surgical Hospital's National Provider Identifier (NPI) to submit claims for medical imaging services. Although the patients who received these services had no connection with the hospital, billing the claims as hospital outpatient services allowed Desert Imaging to obtain a higher rate of reimbursement from Federal healthcare programs. In exchange for letting Desert Imaging use its NPI, Foundation Surgical Hospital retained 17% of payments on the claims.

The settlements announced today resolve a lawsuit filed under the *qui tam* or whistleblower provision of the False Claims Act, which permits private parties to file suit on behalf of the United States for false claims and share in a portion of the government's recovery. The *qui tam* lawsuit is captioned *United States and Texas ex rel. Motts v. East El Paso Physician's Medical Center, et al.*, Case No. EP-18-CV-348-LS (W.D. Tex.).

Assistant United States Attorney Thomas Parnham and former Assistant United States Attorney Eddie Castillo handled this matter on behalf of the government.

The claims resolved by the settlement are allegations only and there has been no determination of liability.

Contact

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Updated April 2, 2025

Topic

FALSE CLAIMS ACT

Component

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